

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125Q0472

☒ **ORIGINAL**

☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis.
3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
HARDWARE KIT, MECHANICAL	5340016822730	40	\$ [REDACTED]	3P

Identify end item, weapon system, or class of item: LITORAL COMBAT SHIP

ESTIMATED BASE VALUE: \$ [REDACTED]

ESTIMATED TOTAL VALUE (BASE + OPTIONS): \$ [REDACTED] (No Options)

MAXIMUM CONTRACT VALUE: \$ [REDACTED] (No Options)

FOR ADD-ONS, PROVIDE VALUE OF OPTION YRS REMAINING: NA

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
☐ 10 U.S.C. 3204(a)(2) - Urgency.

Brief narrative supporting the situation and weapon system:

This repair kit is part of scheduled maintenance for the vessel. The Department of the Navy requires replacements from the original manufacturer to maintain the integrity of the system and reduce maintenance burden and costs.

5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
Defense Maritime Solutions, INC (0EYA6) P/N: H30875-02-10.

The use of the authority cited below:

☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

☒ *AMSC P*. The rights to use the data needed to purchase this part from additional source(s) are not owned by the Government and cannot be purchased, developed, or otherwise obtained. It is uneconomical to reverse engineer

Controlled by: DLA Land and Maritime
Controlled by: FSCD
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]

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this part. This code is used in situations where the Government has the data but does not own the rights to the data. If only one source has the rights or data to manufacture this item, AMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture this item, AMCs 1 or 2 are valid.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

- ☒ The acquisition will be synopsized on or about 23 December 2024.
- ☐ Manufacturers of similar products identified in the market research will be solicited.
- ☒ Dealers of the manufacturers will be solicited.
- ☐ A synopsis exception cited in FAR 5.202 applies.
- ☐ Other.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. This solicitation will be solicited under FAR Part 13.5 Simplified Acquisition of Commercial Items. Certified cost or pricing data will not be required as this is a commercial item. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

Describe the market research conducted and the results: Market research consisted of past procurement review, market survey responses from interested parties, internet sources, and email communication with other acquisition specialists knowledgeable with this item. GSA Advantage and FEDmall listed the item as provided by DLA and did not list any other sources. Haystack provided the procurement history and no additional sources. Vendors are encouraged to submit their product for approval, but there is no current interest, and no expectation of vendors willing or able to submit their product for approval in time to meet the operational need.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

☒ A market survey was conducted on/during 5-12 November 2024.

Total number of vendors contacted by email: Three; Pioneer Industries LLC, Phoenix Trading LLC, SIT Corporation.

Techniques used to conduct survey: Sam.gov and email correspondence.

Types of information requested: Standard DLA market survey inclusive of: Business size, manufacturer or dealer, price breaks, commerciality, estimated delivery, and quantity sensitivity.

Summary of information received: Only Pioneer Industries provided a response. They provided information to support a commerciality determination, as well as delivery timelines.

Information received regarding the commerciality of the item(s): This item is commercial of a type. Shaft split seals are a common seal on cruise ships and large maritime vessels. The OEM supplies this and similar seals to the commercial market. Navy contracting officer [REDACTED] determined the sister item NSN 5340016822660 P:N H30491-02/10 Service Kit B, 370 AN-W as commercial. This item is H30875-02/10 Service Kit B, 290 AN-W, with the only significant difference being a smaller size seal from the 370 AN-W model. The form, function,

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and purpose are the same, the difference being size of the seal (370 vs 290). The contracting officer has determined this item to be commercial of a type (see attached 3.1 6172 MRCDM).

- ☐ A market survey was not conducted due to the unusual and compelling urgency of the requirement.
☐ A market survey was not conducted due to:

9. Additional facts supporting other than full and open competition are:

[X] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: (If none, so state)
Pioneer Industries LLC.

11. The following actions are being taken to identify additional sources:

- [X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items
[X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items
☐ VE Bailment Program
☐ Source Development Review
☐ Reverse Engineering
☐ Other

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. Previous justification is attached.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

WHITING.MONICA.L.
1378381815

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Date: 2025.01.07 11:19:26 -05'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

PETERSON.GEORGE.D.1242831744
E.D.1242831744

Digitally signed by
PETERSON.GEORGE.D.1242831744
Date: 2025.01.14 12:41:01 -05'00'

Competition Advocate Signature

Date

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APPROVAL REQUIREMENTS

☒ Up to \$750,000	Contracting Officer
☒ \$750,000 to \$15,000,000	Competition Advocate
☐ Over \$15,000,000 to \$100,000,000	Head of Contracting Activity (HCA)
☐ Over \$100,000,000	Senior Procurement Executive (AQ) (DLA General Counsel signature line required when sending to AQ)

Attachment(s):

1.0 6172 MFR-Tech Data Supporting Limited Sources
1.7 6172 PO history
3.1 6172 MRCDM
4.1 SPE7L124C0039_J&A